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CASE #	CASE NAME	HEARING NAME
CVRI2404917	SANTOS vs ALPHAMOTIVE MOTORS, LLC	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

C.C.P. §473.5 authorizes the court to grant relief where there has been proper service of summons but defendant did not get actual notice of the action in time to defend. This relief is usually sought when service was made by publication or by substitute service. According to the Declaration of Jean Pierre Castro “11280 Green Glen Street is the home of a family friend. I have kept it as a stable address of record over the years because I have moved frequently and wanted a fixed address, and it remained the address on my driver's license, which I never updated.”

The proof of service filed with the Court on 2/7/2025 indicates that service was accomplished by substitute service on a male adult at the 11280 Green Glen Street address on 12/10/2024. Additionally, the Summons and Complaint were mailed to the address on 12/10/2024. The Court finds that service by substitute service was appropriate.

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.)

The Request for Entry of Default filed on 2/7/2025 indicates at section 6. “Declaration of mailing” that notice was mailed on 2/7/2025 to the 11280 Green Glen Street address. Accordingly, the 180 days ran in August of 2025. This request is untimely. Section 473.5 applies only to defaults and default judgments and does not apply to other types of judgments. Section 473.5 is a procedural remedy by which a default or default judgment may be set aside; it does not apply to other types of judgments. (*Conseco Marketing, LLC v. IFA & Ins. Services, Inc.* (2013) 221 Cal.App.4th 831, 844.)

The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).) The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.)

The Court finds the lack of notice was due to inexcusable neglect on behalf of the movant.

Accordingly, the motion to set aside entry of default is denied.